



CHAPTER xxxvi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Hursley (Rural) Pudsey Ruislip-Northwood and Whitley and Monkseaton. A.D. 1915,

[2nd July 1915.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1915. Short title.

A.D. 1915.

BOROUGH OF PUDSEY.

*Pudsey
Order.*

*Provisional Order for altering the Local Government
Board's Provisional Orders Confirmation (Eastbourne &c.)
Act 1880.*

To the Mayor Aldermen and Burgesses of the Borough of
Pudsey ;—

And to all others whom it may concern.

WHEREAS the Borough of Pudsey (herein-after referred to as "the borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

43 & 44 Vict.
c. cxxxii.

And whereas by a Provisional Order of the Local Government Board dated the twenty-fourth day of May one thousand eight hundred and eighty (herein-after referred to as "the Order of 1880") which was confirmed by the Local Government Board's Provisional Orders Confirmation (Eastbourne &c.) Act 1880 (herein-after referred to as "the Confirming Act of 1880") the Pudsey Local Board (herein-after referred to as "the Local Board") were empowered to put in force with reference to the lands described in the schedule to the Order of 1880 subject to the continuance of any existing public rights of highway the powers of the Lands Clauses Consolidation Acts 1845 1860 and 1869 with respect to the purchase and taking of lands otherwise than by agreement or any of them which lands included the site of the ancient chapel and of the burial ground attached thereto belonging to the perpetual curacy of the ancient parochial chapelry for All Saints Pudsey and which were required for the purpose of improving certain streets;

And whereas by section 5 of the Confirming Act of 1880 it was enacted as follows:—

" If the Pudsey Local Board shall acquire the site of the
" ancient chapel and burial ground referred to in the schedule
" to the Provisional Order relating to the Local Government
" District of Pudsey hereby confirmed or any part thereof they
" shall take all due precautions to prevent the remains of any
" bodies buried therein from being disturbed and they shall
" not devote the said burial ground to any other than its
" present purpose except that they may appropriate so much
" thereof as is shown upon the plan signed by the Right
" Honourable the Earl of Airlie the Chairman of the Committee
" of the House of Lords to whom the said Order was referred

“ and thereon coloured pink for the purpose of widening the
 “ adjoining streets and for making a footway seven feet wide
 “ across such ground as shown on the said plan and the
 “ board shall in such case erect and keep in repair a dwarf
 “ wall with iron palisading thereon around the said ground
 “ and in case they shall make the said footpath shall erect and
 “ keep in repair a similar fence on each side thereof and the
 “ remainder of the land not appropriated for widening streets
 “ or making the said footpath shall be planted for ornamenta-
 “ tion where practicable Provided always that this section shall
 “ be of no effect unless the owner or owners of the said site
 “ of the ancient chapel and burial ground shall consent to the
 “ Local Board acquiring the same subject to the terms of this
 “ section.”

A.D. 1915.

*Pudsey
 Order.*

And whereas by an indenture dated the thirtieth day of June one thousand eight hundred and eighty-one and made between the Reverend Henry John Graham of the first part the Right Reverend Father in God Robert by Divine permission Lord Bishop of Ripon of the second part the Reverend James Wright Hatton of the third part the Ecclesiastical Commissioners for England and Wales of the fourth part and the Local Board of the fifth part and in consideration of the sum of fifty pounds paid by the Local Board the said Henry John Graham with the consents and approvals therein mentioned did convey to the Local Board their successors or assigns the site of the ancient chapel and burial ground referred to in the Schedule to the Order of 1880 and in Section 5 of the Confirming Act of 1880 to hold the same subject to the terms of the said Section;

And whereas the site of the ancient chapel and burial ground is now vested in the Corporation as the successors of the Local Board;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Confirming Act of 1880 so as to enable the Corporation to appropriate for the purposes of widening and improving the adjoining streets and of constructing a footpath a further part of the ancient chapel and burial ground:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act of 1880 shall be altered so that the following provisions shall have effect that is to say:—

38 & 39 Vict.
 c. 55.

Art. I. Notwithstanding anything contained in Section 5 of the Confirming Act of 1880 or in the aforesaid deed of 1881 the Corporation may appropriate the land described in the schedule hereto

[Ch. xxxvi.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1915.

A.D. 1915. for the purposes aforesaid freed from the restrictions contained in
Section 5 of the Confirming Act of 1880.

*Pudsey
Order.*
Short titles.

Art. II. This Order may be cited as the Pudsey Order 1915 and
the Order of 1880 and this Order may be cited together as the
Pudsey Orders 1880 and 1915.

The SCHEDULE above referred to.

All that piece or parcel of land forming part of the site of the
ancient chapel and burial ground attached thereto which piece of land
is more particularly delineated and coloured pink and burnt sienna on
two plans sealed with the official seal of the Local Government Board
of which plans one is deposited in the office of that Board and the
other shall be deposited in the offices of the town clerk of the borough
of Pudsey.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of April One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

URBAN DISTRICT OF RUISLIP-NORTHWOOD.

*Ruislip-
Northwood
Order.*

*Provisional Order to enable the Urban District Council of
Ruislip-Northwood to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Urban District Council of Ruislip-Northwood ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Ruislip-Northwood (herein-
after referred to as "the Council") require to purchase and take the
lands described in the schedule hereto for the construction of additional
works for the disposal of the sewage of their District :

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from

38 & 39 Vict.
c. 55.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xxxvi.]
Provisional Orders Confirmation (No. 4) Act, 1915.

and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

* Art. II. This Order may be cited as the Ruislip-Northwood Order Short title. 1915.

A.D. 1915.
Ruislip-Northwood Order.

Compulsory powers of purchase.

The SCHEDULE above referred to.

Parish of RUISLIP in the County of MIDDLESEX.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Field and public footpath.	Arthur William Nash Frank Ewart Drew Elizabeth Drew George Hipwell Green Ernest William Joseph Savill Official Receiver as Trustee of the Estate of George Hipwell Green a Bankrupt Emily Lewis William Aldersey Lewis Walter Hudson Matthews the Council.	Henry Paradine.
2	Ditto - -	Ditto - - - - -	Ditto.
3	Bed of stream (part of).	Ditto - - - - -	Ditto.

Given under the Seal of Office of the Local Government Board
this Twelfth day of April One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
NOEL T. KERSHAW Assistant Secretary.

[Ch. xxxvi.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1915.

A.D. 1915. URBAN DISTRICT OF WHITLEY AND MONKSEATON.

*Whitley and
Monkseaton
Order.*

*Provisional Order to enable the Urban District Council of
Whitley and Monkseaton to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

To the Urban District Council of Whitley and Monkseaton ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Whitley and Monkseaton (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the following purposes viz.,—

- (1) The lands described in Part I. of the said Schedule for the purpose of widening opening enlarging or otherwise improving the street called Relton Terrace :
- (2) The lands described in Part II. of the said Schedule for the purpose of widening opening enlarging or otherwise improving the street called Station Road :
- (3) The lands described in Part III. of the said Schedule for the purpose of public offices :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

Compulsory
powers of
purchase.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Short title.

Art. II. This Order may be cited as the Whitley and Monkseaton Order 1915.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xxxvi.]
Provisional Orders Confirmation (No. 4) Act, 1915.

The SCHEDULE above referred to.

A.D. 1915.

Parish of WHITLEY and MONKSEATON in the County of NORTHUMBERLAND.

*Whitley and
Monkseaton
Order.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
PART I.			
2	Land and portion of public footpath containing 314 square yards or thereabouts.	His Grace the Duke of Northumberland.	John Nelles.
3	Land and portion of public footpath containing 68 square yards or thereabouts.	Ditto - - -	Ditto.
4	Triangular piece of land containing 19 square yards or thereabouts on the eastern side of Relton Terrace Monkseaton.	The North Eastern Railway Company.	Vacant.
PART II.			
5	Land and fence in front of No. 7 Station Road Whitley.	John Charlton Lamb -	John Charlton Lamb.
6	Land and fence in front of Nos. 9 and 9A Station Road Whitley.	Ditto - - -	Ditto.
7	Land and fence in front of No. 28 Station Road Whitley.	The Executor of Margaret H. Scorfield deceased viz. Thomas Scorfield.	Edward Stobbs.
PART III.			
8	Cottage (No. 236 Whitley Road) outbuildings and land.	The legal personal representative of Mary Ann Pollard deceased viz. Ellen Bowey.	William J. Charlton.
9	Cottage and outbuildings (No. 238 Whitley Road).	Ditto - - -	Francis Birmingham.
10	Cottage outbuildings and land (No. 240 Whitley Road).	Ditto - - -	Ellen Bowey.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of April One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

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